

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

STEVEN DEL VALLE,

Plaintiff,

**COMPLAINT &
JURY DEMAND**

-against-

15 CV 2417

THE CITY OF NEW YORK,
POLICE OFFICER JOHN ANASTASAKOS, SH# 18889
POLICE OFFICER/SGT. JAMES MAHONEY
POLICE OFFICERS JOHN DOES #1-4,

Defendants.

INTRODUCTION

1. This is an action for money damages brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution and under the laws of the State of New York, against the aforementioned police officers and the City of New York.
2. Jurisdiction is based upon 28 U.S.C. §§1331 and 1343 and on the pendant jurisdiction of this Court to entertain claims arising under state law.
3. Venue is laid within the United States District Court for the Eastern District of New York in that a) defendant City of New York is located within said district, and b), the events giving rise to the claim occurred within the boundaries of the Eastern District of New York.
4. It is alleged that the individual police officers in their official and individual capacities made an unreasonable search, seizure, arrest and imprisonment of the person of STEVEN DEL VALLE, (Plaintiff) violating his rights under the Fourth and Fourteenth Amendments to the United States Constitution, and these

defendants assaulted, battered and imprisoned Plaintiff. It is further alleged that these violations were committed as a result of policies and customs of the City of New York.

5. The Plaintiff alleges that defendant police officers thereby deprived Plaintiff of his rights, privileges and immunities as guaranteed by the laws of the State of New York.

PARTIES

6. Plaintiff Steven Del Valle ("Plaintiff") is a citizen and resident of Richmond County, City and State of New York, and a citizen of the United States.
7. The City of New York ("CITY") is a municipal corporation organized under the laws of the State of New York.
8. The City is authorized under the laws of the State of New York to maintain a police department, the NYPD.
9. The NYPD acts as the City's agent in the area of law enforcement.
10. The law enforcement activities of the NYPD are funded partially by the federal government.
11. Defendant Officers JOHN ANASTASAKOS (ANASTASAKOS) JAMES MAHONEY (MAHONEY) and JOHN DOES were at all times material to this Complaint, duly appointed and acting officers of the Police Department of the City of New York.
12. Defendant Officers ANASTASAKOS, MAHONEY and JOHN DOES were at all times material to this Complaint acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the CITY.
13. The CITY is the employer of the said officers.

14. The true names and capacities of JOHN DOES are presently unknown to the Plaintiff. Plaintiff believes, and based upon such belief alleges, that each of said JOHN DOES have responsibility for the damages suffered by the Plaintiff. Leave of court will be sought to amend this complaint to include the true names and capacities of the JOHN DOES, and any other responsible person or entity as soon as such information becomes known to the Plaintiff.

FACTS

15. On January 28, 2014 at approximately 4:00 P.M., at 5302 Sixth Avenue, in Brooklyn, New York, a residential apartment building, Plaintiff was visiting his friend who resided there.

16. On January 28, 2014 at approximately 4:00 P.M., at 5302 Sixth Avenue, in Brooklyn, New York, Plaintiff was on those premises lawfully.

17. At that approximate time, Plaintiff was walking through a vestibule leading to the front entrance of the building.

18. When Plaintiff was outside by the entrance to the building, two JOHN DOES (one of whom is heavier set) stop Plaintiff as he is walking down the stairs to the street level and demand Plaintiff tell them where Plaintiff is going.

19. When Plaintiff was outside by the entrance to the building, two non-uniformed JOHN DOES stop Plaintiff as he is walking down the stairs to the street level and demand Plaintiff tell them whether Plaintiff lives in the building.

20. Plaintiff replied to these men's questions by asking who they were.

21. These men then identified themselves as police officers.

22. Plaintiff then handed one of the men a Patrolmen's Benevolent Association that the heavier set JOHN DOE throws it a distance to the ground.

23. At approximately that time, two uniformed JOHN DOES appear on that street close to the stairs and behind the two non-uniformed JOHN DOES.

24. The heavier set JOHN DOE then told Plaintiff to walk up the steps back to the building entrance door.

25. The Plaintiff therein asked the heavier set JOHN DOE why.

26. The heavier set JOHN DOE then grabbed the Plaintiff's shirt and pulled Plaintiff up to the top of the steps.

27. At the top of the stairs, the heavier set JOHN DOE pushed the Plaintiff against a wall and punched Plaintiff in the head. The other un-uniformed JOHN DOE joined in and punched the Plaintiff.

28. Plaintiff stumbled down those steps where all four JOHN DOES participated in slamming Plaintiff against a wall. One of the uniformed JOHN DOES there put handcuffs on the Plaintiff.

29. Defendant MAHONEY approved the arrest for processing.

30. Defendant ANASTASAKOS was designated the "Arresting Officer" and prepared various police reports in connection with this arrest.

31. Defendant MAHONEY approved Defendant ANASTASAKOS' various police reports.

32. Thereafter, JOHN DOES removed Plaintiff from said location against Plaintiff's will to the 72nd Precinct Stationhouse.

33. On January 28, 2014 at approximately 4:00 P.M., at 5302 Sixth Avenue, in Brooklyn, New York, Defendant JOHN DOES initiated Police contact with Plaintiff.

34. At no time during the events described above, was the Plaintiff intoxicated, a threat to the safety of himself or others, or disorderly.

35. The defendant JOHN DOES, ANASTASAKOS and MAHONEY had no warrant for the arrest of the Plaintiff.

36. The defendant JOHN DOES, ANASTASAKOS and MAHONEY had no probable cause for the arrest of the Plaintiff.

37. The defendant JOHN DOES, ANASTASAKOS and MAHONEY had no legal cause or excuse to seize the person of the Plaintiff.

38. At all times during the events described above, the defendant JOHN DOES, ANASTASAKOS and MAHONEY were engaged in a joint venture. The individual JOHN DOES, ANASTASAKOS and MAHONEY assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during the said events.

39. As a direct and proximate result of the said acts of the defendant JOHN DOES, ANASTASAKOS and MAHONEY Officers, the Plaintiff suffered the following injuries and damages:

- a. Violation of his constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from an unreasonable search and seizure of his person;
- b. Loss of his physical liberty;
- c. Physical pain and suffering and emotional trauma and suffering

40. The actions of the defendant Officers violated the following clearly established and well settled federal constitutional rights of Plaintiff:

- a. Freedom from the unreasonable seizure of his person;

- b.** Freedom from the use of excessive, unreasonable and unjustified force against his person.

COUNT I: 42 U.S.C. §1983 Against Individual Defendants

- 41. Paragraphs 1 through 37 are incorporated herein by reference as though fully set forth.
- 42. Plaintiff claims damages for the injuries set forth above under 42 U.S.C. § 1983 against the aforesaid defendant JOHN DOES, ANASTASAKOS and MAHONEY for violation of his constitutional rights under color of law.

COUNT II: Assault and Battery Against Individual Defendants

- 43. Paragraphs 1 through 42 are incorporated herein by reference as though fully set forth.
- 44. Plaintiff alleges that Defendant JOHN DOES used and abused their police authority.
- 45. Plaintiff alleges that Defendant JOHN DOES initiated physical contact and restraint upon the Plaintiff.
- 46. Plaintiff alleges that Defendant JOHN DOES' conduct was intentional.
- 47. Plaintiff alleges that Defendant JOHN DOES' behavior caused him to fear physical violence.
- 48. Plaintiff alleges that Defendant JOHN DOES' conduct caused him to fear further restraint upon Plaintiff.
- 49. Plaintiff alleges that Defendant JOHN DOES' behavior was not privileged.
- 50. Plaintiff alleges that Defendant JOHN DOES' conduct was offensive.

**COUNT III: False Arrest and Illegal Imprisonment Against Individual
Defendants**

51. Paragraphs 1 through 47 are incorporated herein by reference as though fully set forth.

52. Defendant JOHN DOES, ANASTASAKOS and MAHONEY illegally arrested Plaintiff.

53. Defendant JOHN DOES, ANASTASAKOS and MAHONEY illegally imprisoned Plaintiff.

54. Plaintiff alleges that he was conscious of the confinement.

55. Plaintiff alleges that he did not consent to the confinement.

56. Plaintiff alleges that the confinement imposed by Defendant JOHN DOES, ANASTASAKOS and MAHONEY was not privileged.

57. As a result of this false arrest and illegal imprisonment, the Plaintiff suffered the damages as aforesaid.

COUNT IV: Malicious Prosecution

58. Paragraphs 1 through 51 are incorporated herein by reference as though fully set forth.

59. Thereafter, JOHN DOES, ANASTASAKOS and MAHONEY continued the detention of the Plaintiff and caused the Plaintiff to be moved to “Central Booking” and await appearance before the Kings County Criminal Court.

60. Plaintiff remained in custody within Central Booking holding areas or cells for numerous hours.

61. Defendant JOHN DOES, ANASTASAKOS and MAHONEY were the sources of information from which official police reports were prepared in respect of the Plaintiff's arrest and prosecution.

62. Said information was false.

63. Defendant JOHN DOES, ANASTASAKOS and MAHONEY knew said information was false.

64. Defendant JOHN DOES, ANASTASAKOS and MAHONEY were the sources of information from which official court documents such as Complaints were prepared and filed in respect of the Plaintiff's arrest and prosecution.

65. Said information was false.

66. Defendant JOHN DOES, ANASTASAKOS and MAHONEY knew said information was false.

67. During his detention, Plaintiff was exceedingly frustrated and otherwise upset emotionally by his imprisonment for false accusations and charges by police.

68. On or about January 29, 2014 Plaintiff was caused to appear before the Honorable Alex Calabrese, at Kings County Criminal Court and was arraigned by the Judge on the Complaint, under docket number 2014CN000255.

69. Plaintiff was charged with violating Penal Law § 140.10A, Criminal Trespass in the Third Degree, a class B misdemeanor, punishable by up to 90 days in jail, and Penal Law § 221.05, Unlawful Possession of Marijuana, a Violation level offense punishable by up to 15 days in jail, Penal Law § 205.30, Resisting Arrest, an A level misdemeanor punishable by up to one year in jail, Penal Law § 140.05, Criminal Trespass in the 4th Degree, a Violation level offense punishable by up to 15 days in jail, and Penal Law § 140.15, Criminal Trespass in the 2nd Degree, an A

level misdemeanor punishable by up to one year in jail. Plaintiff pleaded Not Guilty. Plaintiff was released on his recognizance.

70. The Judge adjourned the case for further proceedings.

71. The Plaintiff attended court on each required adjourned date.

72. On or about March 20, 2015, the said charges were dismissed.

COUNT V: 42 U.S.C. §1983 Against the City of New York

73. Paragraphs 1 through 72 are incorporated herein by reference as though fully set forth.

74. Upon information and belief, prior to and including January 29, 2014, the City and its agents developed and maintained policies or customs, exhibiting deliberate indifference to the Constitutional rights of persons in New York City. Such policies enabled the violation of Plaintiff's rights.

75. Prior to January 29, 2014, it was the policy and/or custom of the City to tolerate such acts of misconduct in furtherance of policies such as "Stop, Question and Frisk", such tolerance becoming the actual policy.

76. Prior to January 29, 2014, it was the policy and/or custom of the City to supervise and train its security officers to enforce policies such as "Stop, Question and Frisk" aggressively.

77. It was the policy and/or custom of the City to investigate inadequately and improperly citizen complaints of police misconduct, and the City instead tolerated acts of misconduct.

78. It was the policy and/or custom of the City to inadequately supervise and train its police officers, including the defendant officers, thereby failing to discourage adequately further constitutional violations on the part of its police officers.

79. The City did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

80. The City did not require appropriate in-service training or re-training of officers who were suspected to have engaged in police misconduct

81. As a result of these policies and customs, police officers of the CITY believed that their actions would not be monitored properly by supervisory officers and that their misconduct would not be investigated or sanctioned, but would be tolerated.

82. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City to the constitutional rights of persons within the City, and were the cause of the violations of plaintiff's rights alleged herein

83. Upon information and belief, prior to and including January 29, 2014, the City and its agents failed to develop and maintain sufficient policies or customs that could have prevented such violations to Plaintiff's Constitutional and New York State rights.

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COUNT VI: EMOTIONAL DISTRESS (INTENTIONALLY INFLICTED)

Paragraphs 1 through 79 are incorporated herein by reference as though fully set forth.

87. Plaintiff alleges that Defendant JOHN DOES, ANASTASAKOS and MAHONEY acted knowingly in all of the descriptions of police conduct given in the foregoing paragraphs.

88. Plaintiff alleges that Defendant JOHN DOES, ANASTASAKOS and MAHONEY acted intentionally in all of the descriptions of police conduct given in the foregoing paragraphs.

89. Plaintiff alleges that Defendant JOHN DOES, ANASTASAKOS and MAHONEY acted in reckless disregard for the truth in all of the descriptions of police conduct given in the foregoing paragraphs.

90. Plaintiff alleges that the foregoing police conduct is extreme and outrageous in that such conduct violates expectations and norms attributed to our civilized community.

91. Plaintiff alleges that Defendant JOHN DOES, ANASTASAKOS and MAHONEY intended to cause Plaintiff severe emotional distress.

92. Plaintiff alleges that Defendant JOHN DOES, ANASTASAKOS and MAHONEY knew their conduct would cause Plaintiff severe emotional distress.

93. Plaintiff alleges that Defendant JOHN DOES, ANASTASAKOS and MAHONEY conduct caused Plaintiff severe emotional distress.

COUNT VII: INTENTIONAL HARM TO ANOTHER:

94. Paragraphs 1 through 87 are incorporated herein by reference as though fully set forth

95. Plaintiff alleges that Defendant JOHN DOES, ANASTASAKOS' and MAHONEY's conduct was motivated by malice.

96. Plaintiff alleges that Defendants JOHN DOES', ANASTASAKOS' and MAHONEY's conduct was without excuse or justification.

97. Plaintiff alleges that he has a right to be compensated specially therefore.

98. Plaintiff alleges that Defendant JOHN DOES', ANASTASAKOS' and MAHONEY's conduct was intentional.

99. Plaintiff alleges that Defendant JOHN DOES', ANASTASAKOS' and MAHONEY's behavior caused him to fear physical violence.

100. Plaintiff alleges that Defendant JOHN DOES', ANASTASAKOS' and MAHONEY's conduct caused him to fear further restraint upon Plaintiff.

101. Plaintiff alleges that Defendant JOHN DOES', ANASTASAKOS' and MAHONEY's behavior was not privileged.

COUNT VIII: MUNICIPAL NEGLIGENCE

102. Paragraphs 1 through 101 are incorporated herein by reference as though fully set forth.

103. Upon information and belief, Plaintiff alleges that prior to January 29, 2014, Defendant JOHN DOES, ANASTASAKOS and MAHONEY demonstrated improper deportment to be employed by the CITY.

104. Plaintiff alleges that prior to January 29, 2014, defendant City was negligent, careless and reckless in hiring and retaining as its employees the defendant JOHN DOES, ANASTASAKOS and MAHONEY.

105. As a direct result of the City's negligence in hiring and retaining as its employees the defendant officers, the Plaintiff suffered the damages elicited in the foregoing paragraphs.

106. As a direct result of the City's carelessness in hiring and retaining as its employees the defendant officers, the Plaintiff suffered the damages elicited in the foregoing paragraphs.

107. As a direct result of the City's recklessness in hiring and retaining as its employees the defendant officers, the Plaintiff suffered the damages elicited in the foregoing paragraphs.

PRELIMINARIES

108. On April 24, 2014, Plaintiff served a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof on the Comptroller of the City of New York.

109. Thereafter, said Comptroller for the City of New York refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof.

110. Due to necessary rescheduling of the New York Municipal Law Section 50H hearing to a date beyond the Statute of Limitations, the Plaintiff has yet to give testimony before a Notary Public regarding his claim, pursuant to New York Municipal Law Section 50H.

RELIEF DEMANDED

111. Plaintiff petitions this Court to:

- a) Award damages to Plaintiff against the defendants, jointly, severally, in their individual and official capacities;
- b) Award punitive damages against the individual defendants;
- c) Award costs of this action to the Plaintiff;
- d) Award Attorney Fees and costs to Plaintiff's Counsel pursuant to 42 U.S.C. 1988
- e) Award such other and further relief, as this Court may deem appropriate.

Dated: Brooklyn, New York
April 28, 2015

Respectfully submitted,

Steven Hubert

Digitally signed by Steven Hubert
DN: cn=Steven Hubert, o=Hubert Law Offices,
ou, email=hubertlawoffices@gmail.com, c=US
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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

STEVEN DEL VALLE,

Plaintiff,

15-CV-2417

v.

THE CITY OF NEW YORK,
POLICE OFFICER JOHN ANASTASAKOS, SH# 18889
POLICE OFFICER/SGT. JAMES MAHONEY
POLICE OFFICERS JOHN DOES #1-4,
Defendants.

COMPLAINT AND DEMANDS FOR JURY AND RELIEF

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